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Provision of March 7, 2024
Register of provisions
n. 160 of March 7, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June 30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD to the complaint submitted on July 31, 2023, pursuant to Article 77 of the Regulation by Ms. XX against BdM Banca S.p.a. (formerly Banca Popolare di Bari S.p.a.);

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The complaint against the credit institution and the investigative activity.

With the complaint submitted to this Authority on July 31, 2023, Ms. XX complained of not having received an adequate response from Banca Popolare di Bari S.p.a. (hereinafter "BdM Banca" or "the credit institution" or "the bank") to a request for access to personal data made pursuant to Articles 15 of the Regulation and 2-terdecies of the Code as an heir of her deceased father.

In particular, the complainant represented that following the request of March 16, 2023, the credit institution, after being prompted multiple times, initially communicated that in the name of the deceased, "born on (...) there was no relationship," while following further communications, on June 6, 2023, it stated that there were "relationships in the name of the deceased," yet failing to provide the requested data.

Following the invitation from the Office to provide observations regarding the facts subject to the complaint, as well as to voluntarily comply with the requests made by the complainant, the Bank, with a note dated September 18, 2023 (addressed to the complainant and simultaneously to the Authority), while transmitting a copy of the note dated September 4, 2023 (subsequently sent on September 14, 2023) with which a partial response had been provided to the interested party, also communicated that "the full copy of the account statements and transactions relating to the last 10 years of the current account relationship" could only be obtained following a request for access to banking documents, made pursuant to Article 119 of Legislative Decree 385/1993 (the so-called T.u.b.).

On the same date, the complainant, expressing dissatisfaction with the response received, renewed her request for access to all data relating to the deceased "however held and stored, without any exclusion and not yet communicated [...]"; therefore, following further communications between the parties, the Bank, with a note dated October 2, 2023 - sent to the complainant and the Authority - communicated that it had "on this date transmitted a copy of the account statements relating to the last ten years concerning current account n. (...) in the name of the deceased (...), prior to the redaction of third-party data."

For the above reasons, with a note dated October 9, 2023, the Office notified the Bank of the initiation

of the procedure for the adoption of measures pursuant to Articles 58, par. 2, and 83 of the Regulation, in accordance with the provisions of Article 166, paragraph 5, of the Code, in relation to the violation of Articles 12, par. 3 and 4, and 15 of the Regulation.

With the same note, the Bank was invited to produce defensive writings or documents or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, Law n. 689 of November 24, 1981).

The credit institution, on October 25, 2023, submitted its defensive writings, which are fully referenced here, in which, while describing the commitment made in training and raising awareness among staff regarding compliance with principles concerning personal data protection, - also through the adoption of a "Group Policy" and a "Privacy Manual" within which the "Operational Procedure for the Management of Data Subjects' Rights" is regulated - highlighted how "the failure to provide a timely response to the initial request of March 16, 2023, and the subsequent reminders was due to a series of operational misunderstandings attributable to three specific circumstances." In particular:

a) "erroneous addressing" of the request for access to personal data relating to the deceased to an email address "formally designated for receiving requests for different purposes and not to one of the two email addresses of the DPO (ordinary and certified) specifically identified for managing and responding to requests from data subjects, as clearly stated in the "Privacy" section of our website and in the privacy notice to customers, also available on the Bank's website. The correct sending of the request to one of the two DPO addresses would certainly have ensured the proper framing of the issue and a timely response within the terms provided by the relevant regulations";

b) "erroneous belief regarding the non-existence of

Reports addressed to the deceased, as identified in the substitute declaration of notoriety submitted by the lawyer attached to the request itself; this circumstance (incorrect indication of the date of birth) initially led the U.O. Foreclosures and Successions to not promptly verify the request, believing that the Bank was not the actual recipient of the request;

c) "incorrect classification of the request by the organizational unit receiving the original application of March 16, 2023, which treated and managed it as a request related to the opening of a succession file, as also demonstrated by the request made by the same structure on June 6 of this year for the integration of the documentation necessary for the definition of the file itself."

In the same memorandum, the Bank, noting that it has never been the recipient of any corrective measure from the Authority, highlighted that it has "promptly activated itself to mitigate the negative consequences arising from the alleged violation," not only "planning for November 2023 a specific training activity for the Central Structure responsible for receiving requests for data and documents and for that responsible for managing succession files," but also preparing and publishing:

a) "with a bimonthly visualization, a specific awareness communication, through a notice on the homepage of the corporate intranet, aimed at reiterating the necessity to involve, within the short term provided by internal regulations (by the day following receipt), the DPO office in case of requests for the exercise of the rights of the data subjects or requests that contain any regulatory reference to the legislation on personal data protection or doubts regarding the classification of the request";

b) "on the BdM website (www.popolarebari.it) in the 'institutional' section, a link redirecting to the Privacy section, where information is provided to correctly direct requests for the exercise of the rights of the data subjects."

****2. The legislation on personal data protection.****

Article 12 of the Regulation states that "the data controller shall adopt appropriate measures to provide the data subject with all [...] communications referred to in Articles 15 to 22 and Article 34 related to the processing" (par. 1) and that "the data controller facilitates the exercise of the rights of the data subject pursuant to Articles 15 to 22" (par. 2).

Paragraph 3 of the same article specifies that "the data controller provides the data subject with information regarding the action taken concerning a request under Articles 15 to 22 without undue delay and, in any case, no later than one month from the receipt of the request. This period may be

extended by two months, if necessary, taking into account the complexity and number of requests. The data controller informs the data subject of such extension, and the reasons for the delay, within one month from the receipt of the request.”

According to paragraph 4 of the same article, the data controller, if it does not comply with the request of the data subject, “informs the data subject without delay, and at the latest within one month from the receipt of the request, of the reasons for non-compliance and the possibility of lodging a complaint with a supervisory authority and seeking judicial remedy.”

Article 15, par. 1, of the Regulation also states that “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if so, to obtain access to the personal data and to [...] information [indicated in the same Article 15].”

Finally, Article 2-terdecies, paragraph 1, of the Code provides that “the rights referred to in Articles 15 to 22 of the Regulation concerning personal data relating to deceased persons may be exercised by those who have a legitimate interest, or act to protect the data subject, as their representative, or for family reasons deserving of protection.”

****3. The outcome of the investigation and the Authority's assessments.****

As a result of the documentation produced and the statements made by the party during the proceedings, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code. It emerged that the Bank did not respond to the request for access to personal data made by the complainant within the time frame provided by Article 12, par. 3 of the Regulation (“without undue delay and, in any case, at the latest within one month from the receipt of the request”), nor did it inform the data subject, within the same timeframe, of the reasons for non-compliance as well as the possibility of lodging a complaint with a supervisory authority or seeking judicial remedy (Article 12, par. 4 of the Regulation).

Only following the initiation of the investigation by the Authority, in fact, the credit institution (on the same date as the invitation to comply) provided the data subject with an initial partial response, which was supplemented in the following days by delivering the requested documentation.

Regarding what the Bank claimed about the reasons that caused the delay in the response (incorrect addressing of the access request to an email inbox...

formally designated for receiving requests with purposes other than the exercise of rights), it should be noted that the “Guidelines 01/2022 on data subject rights - Right of access,” adopted by the EDPB on January 18, 2022 (subject to public consultation concluded on March 11, 2022), clarify that data subjects are not obliged to adopt a specific format for submitting requests to exercise the right of access (see Guidelines 01/2022 cited, point 52 “the GDPR does not impose any requirements on data subjects regarding the form of the request for access to the personal data. Therefore, there are in principle no requirements under the GDPR that the data subjects must observe when choosing a communication channel through which they enter into contact with the controller” unofficial translation “the General Data Protection Regulation does not impose any requirements on data subjects regarding the format of the request for access to personal data. Therefore, in principle, there are no requirements that the data subject must comply with when choosing a communication channel through which to contact the data controller”).

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Art. 58, par. 2 of the Regulation. For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are therefore inadequate to allow for the closure of the present procedure, as none of the cases provided for by Art. 11 of the Garante Regulation No. 1/2019 apply. The failure to respond to the access request submitted by the complainant pursuant to Art. 2-terdecies of the Code is indeed unlawful, in the terms

outlined above, in relation to Art. 12 of the Regulation; on the other hand, regarding the request to “order the data controller to satisfy the requests for the exercise of rights under Articles 15 to 22 of the Regulation,” considering that the Bank, concurrently with the initiation of the investigation procedure by the Authority, upon realizing the misunderstanding, proceeded to provide the complainant with an initial response and that this was subsequently supplemented by the delivery of all banking documentation related to the deceased (without the application of the costs provided for by Art. 119 of the Consolidated Banking Act), there is no basis for the adoption of an injunction by the Authority itself (Art. 58, par. 2, lett. c) and d)). It is also noted that the Company has implemented detailed organizational measures for managing requests related to the exercise of rights under Articles 15-22 of the Regulation, with particular regard to the need for correct and timely identification of the same. Therefore, the complaint submitted pursuant to Art. 77 of the Regulation must be considered well-founded, and this Authority, in exercising the corrective powers attributed to it pursuant to Art. 58, par. 2, of the Regulation, orders the application of an administrative monetary penalty pursuant to Art. 83, par. 5, of the Regulation.

5. Injunction order. The violation of the aforementioned provisions entails the application of the administrative penalty provided for by Art. 83, par. 5, lett. b), of the Regulation. With reference to the elements listed in Art. 83, par. 2, of the Regulation for the purpose of applying the administrative monetary penalty and its quantification, considering that the penalty must be “effective, proportionate and dissuasive in each individual case” (Art. 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account: a) the significant nature of the violation, which concerned the provisions related to the exercise of the rights of data subjects; b) the degree of responsibility of the controller, which is mitigated as they, as soon as they became aware of the violation, provided the interested party with the requested information; c) the measures adopted by the controller to mitigate the negative consequences arising from the unlawful act, including the delivery of a copy of the banking documentation related to the deceased for the last ten years; d) the cooperation with the Authority during the procedure; e) the small number of data subjects involved (one); f) the organizational measures put in place to ensure timely and adequate responses to requests for the exercise of rights; g) the absence of previous violations for the same case against BdM Banca S.p.a. (formerly Banca popolare di Bari S.p.a.) (see Art. 83, par. 2, and cons. 148 of the Regulation). In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Art. 83, par. 1, of the Regulation) to which the Authority must adhere in determining the amount of the penalty, the economic conditions of the offender have been taken into account, determined based on the revenues reported in the financial statements for the year 2022, and it has also been considered that the controller has never been the recipient of measures under Art. 58 of the Regulation. In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary penalty at €10,000.00 (ten thousand) for the violation of Art. 12, par. 3 and 4, of the Regulation.

In this context, also considering the type of violation ascertained, which concerned the principles of personal data protection, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should proceed.

It is noted, finally, that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Garante, are met.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out, in the terms set out in the reasoning, for the violation of Article 12, paragraphs 3 and 4, of the Regulation.

ORDERS

BdM Banca S.p.a. (formerly Banca popolare di Bari S.p.a.) with registered office at Corso Cavour No. 19 – Bari – Tax Code 00254030729, pursuant to Article 58, paragraph 2, letter i), of the Regulation, to

pay the sum of €10,000 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

the same BdM Banca S.p.a. to pay the sum of €10,000.00 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with a petition filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, March 7, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia

THE SECRETARY GENERAL

Mattei